Union Executive

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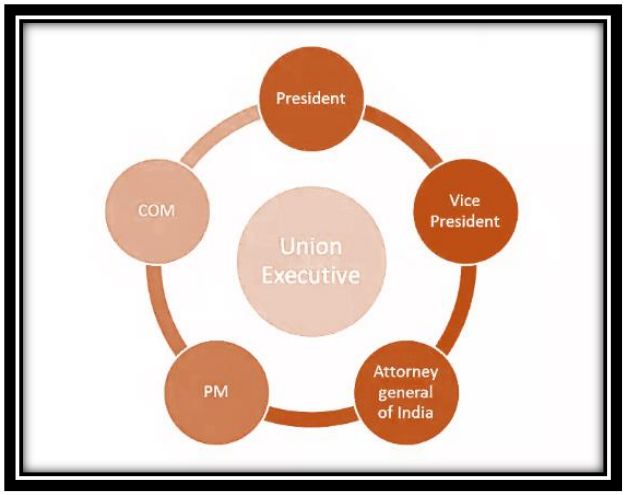
Introduction

✓ Part V

✓ **Articles 52-78**

✓ The Union executive consists of

1. The President
2. The **Vice President**
3. The Council of Ministers
4. The Prime Minister
5. The **Attorney General of India**

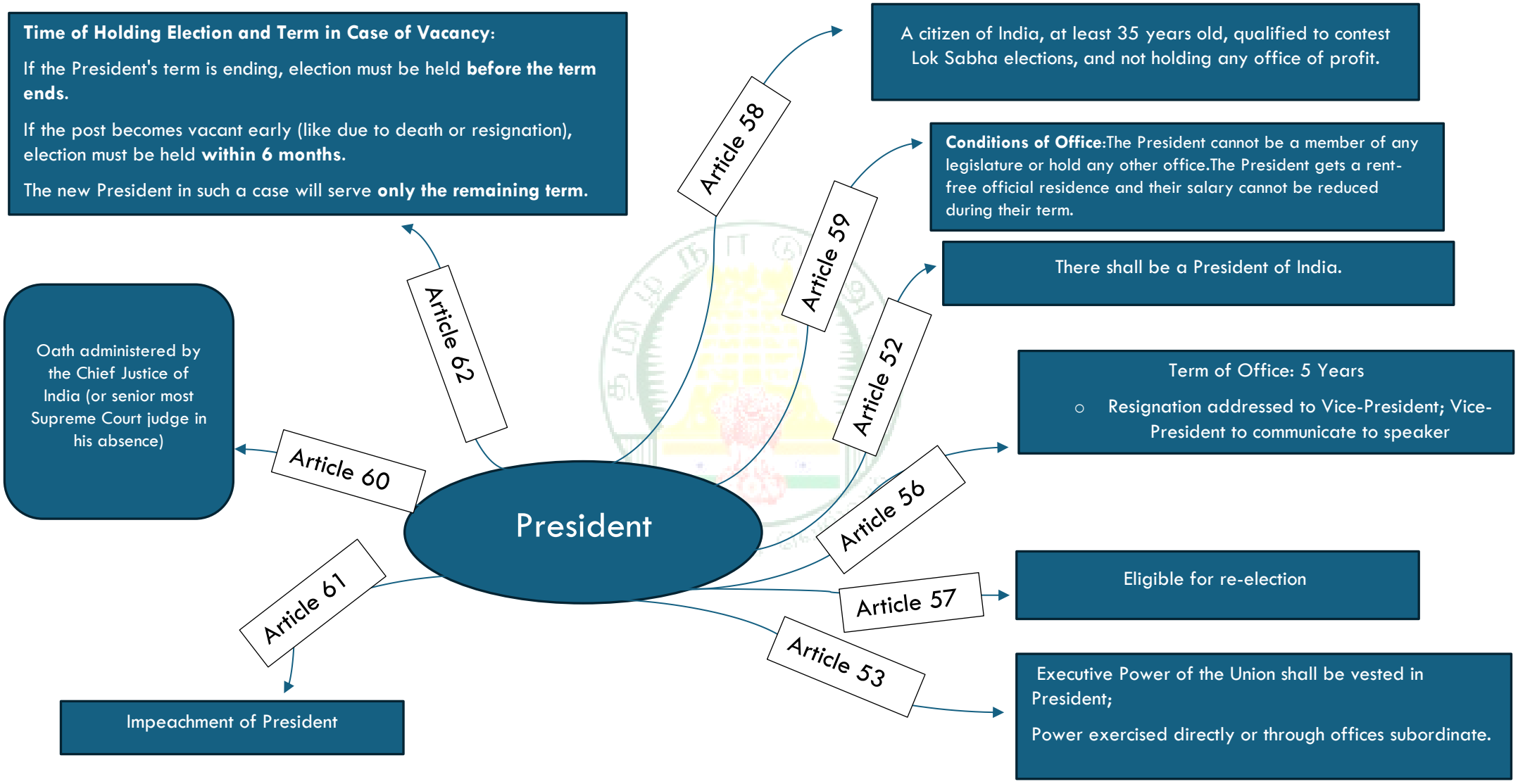


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Functions of the President



Executive Powers

- All government actions are done in the President's name.
- **Appointments:** Appoints the Prime Minister, ministers, governors, Attorney General, etc. (Art. 75)
- Can set rules for how the government functions (Art. 77)
- Can ask the PM and ministers for information (Art. 78)
- **Union Territories:** Appoints administrators for Union Territories (Art. 239)
- **Tribal Areas:** Declares scheduled and tribal areas (Art. 244)



Judicial Powers

- **Appoints Judges:** Appoints Chief Justice and other judges of the Supreme Court and High Courts

Seek Advice from Supreme Court: On legal issues (Art. 143) – not binding

Clemency Powers: Can pardon, reduce or suspend punishments (Art. 72)



Legislative Powers

- **Summons & Dissolves Parliament:** On advice of the Council of Ministers
- **Joint Sitting:** Calls joint sitting of both Houses (Lok Sabha & Rajya Sabha)
- **Nominates Members:** 12 members to Rajya Sabha with special knowledge (Art. 80)
- **Sends Messages:** Can send messages to Parliament (Art. 86)
- **Addresses Parliament:** At the first session after elections and every year (Art. 87)

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Financial Powers

Money Bills: Can be introduced only with the President's recommendation (Art. 110)

Union Budget: The President presents the annual budget in Parliament

No demand for grant can be made without the President's approval (Art. 113)

Contingency Fund: Can allow urgent spending from it (Art. 267)

Sets up the Finance Commission every 5 years (Art. 280)

Diplomatic Powers

Treaties & Agreements: Negotiated in the President's name (Art. 253), but Parliament must approve

Sends/receives ambassadors and represents India globally

Military Powers

Supreme Commander: Heads the armed forces (Art. 53(2)) and appoints service chiefs

War & Peace: Can declare war or peace—with Parliament's approval

Emergency Powers

National Emergency – Art. 352

President's Rule (State Emergency) – Art. 356, 365

Financial Emergency – Art. 360

Limitations on the President's Powers

Bound by Constitution & Laws: Must follow constitutional provisions and laws

Judicial Review: Courts can review President's decisions

Cabinet Advice: Must act on the advice of PM and Council of Ministers

Bill Assent: Can return a bill once, but must approve it if passed again

Fixed Term: Serves a 5-year term, can be impeached for constitutional violations

Limited Legislative Role: Can summon, dissolve, and address Parliament; issue ordinances

Pardoning Power: Cannot act alone—must follow Cabinet's advice

Emergency Needs Approval: Emergency declaration must be approved by Parliament

Vice president of India

Article 63: There shall be a Vice-President of India.

Election of the Vice-President (Article 66)

Electoral College: Members (elected + nominated) of both Lok Sabha and Rajya Sabha.

Election Method: Proportional representation by **Single Transferable Vote (STV);** secret ballot.

Role & Functions

Ex-officio Chairman of Rajya Sabha (Upper House of Parliament)

Acts as President:

In case of death, resignation, removal, or any other reason when the President's office becomes vacant (**Article 65**).

Temporarily discharges President's functions during absence, illness, or any other cause.

Eligibility Criteria

Indian citizen.

At least 35 years old.

Qualified to be elected as a **member of the Rajya Sabha** (not Lok Sabha).

Must not hold any office of profit.

Oath of Office

Administered by the President or a person appointed by the President.

Term and Removal (Article 67) **Term:** 5 years.

Resignation: Addressed to the President.

Vacancy (Article 68)

Due to: Expiry of term, death, resignation, removal, or any other reason.

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Prime Minister of India

Head of Government

- Leads the **Union Executive**.
- Exercises **real executive power** in the country.

Chairman of the Cabinet

- Presides over Cabinet meetings.
- Guides discussions and final decisions.
- Can override Cabinet differences in crucial matters.

Portfolio Allocation

- Allocates or reshuffles portfolios among ministers.
- Can advise the President to appoint or dismiss any minister.

Constitutional Provisions

- **Article 74**: The Council of Ministers, headed by the Prime Minister, shall aid and advise the President.
- **Article 75**:
  - President appoints the Prime Minister.
  - Other ministers are appointed by the President on the advice of the Prime Minister.
  - Ministers hold office **during the pleasure of the President.**
  - Council of Ministers is **collectively responsible to the Lok Sabha.**
- **Article 78**: The Prime Minister communicates decisions of the Council of Ministers to the President and provides information

Appointment

- **Appointed by the President:**
  - Usually the leader of the majority party in the **Lok Sabha.**
  - In absence of a majority, a person who can secure majority support in the Lok Sabha.

Eligibility

Must be a **citizen of India.**
A **member of either House of Parliament.**

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Responsibilities of PM

Link Between President and Council of Ministers
Keeps the President informed of **Cabinet decisions.**
Advises the President on **policy and legislative matters.**

International Representation
Represents India in **global summits,** bilateral/multilateral meetings, and international negotiations.

Link Between President and Council of Ministers
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Advises the President on **policy and legislative matters.**

Heads Key Institutions
Nuclear Command Authority
NITI Aayog
Appointments Committee of the Cabinet
Ministry of Personnel, Public Grievances & Pensions
Department of Atomic Energy
Department of Space

Council of Ministers (CoM)

Constitutional & Legal Provisions

- **Appointed by the President** on the **advice of the Prime Minister.**
- The total number of Ministers (including PM) **must not exceed 15%** of the **total strength of the Lok Sabha** – as per the **91st Constitutional Amendment Act, 2003.**
- A minister who **is not a member of either House** of Parliament **must become one within six months,** or he **ceases to be a minister.**
- **Parliament decides** the **salary and allowances** of the CoM.

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Composition

Includes:

Cabinet Ministers

Ministers of State (with or without independent charge)

Deputy Ministers

Membership Rules

A minister can be from **either House** of Parliament.

A minister who is a member of one House can **participate in proceedings** of the other **without voting rights** if not a member of that House.

Collective Responsibility

Council of Ministers is collectively responsible to the Lok Sabha.

All ministers must publicly support decisions of the Cabinet, regardless of private disagreements.

If the **Lok Sabha passes a no-confidence motion,** the **entire Council (including PM) must resign.**

Even if **only one ministry's decision is defeated,** the **entire Council** resigns.

Individual Responsibility

Ministers hold office **during the pleasure of the President,** but this is **effectively at the discretion of the Prime Minister.**

A minister can be **removed individually** by the President **on the PM's advice.**

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⚖️ Attorney General (AG) of India

Constitutional Provision

- **Article 76** of the Constitution of India.
- Part of the **Union Executive.**
- **Highest law officer** of the country.

👨‍⚖️ Appointment & Eligibility

- **Appointed by the President** on the **advice of the Government of India.**
- **Eligibility:**
  - Must be qualified to be **appointed a Judge of the Supreme Court.**
  - i.e., an Indian citizen with:
    - 5 years as High Court judge **or**
    - 10 years as an advocate in a High Court **or**
    - An eminent jurist in the opinion of the President.

Duties & Functions

- **Legal advisor** to the Government of India on matters referred by the **President.**
- Represents **Government of India:**
  - In the **Supreme Court** and **High Courts.**
  - In **Presidential references** under **Article 143.**
- Performs other legal functions assigned by the President or law.

Rights & Privileges

- **Right to speak and participate** in:
  - Proceedings of **both Houses of Parliament.**
  - **Joint sittings and Parliamentary Committees,** if nominated.
- **No right to vote.**
- Entitled to **privileges and immunities of a Member of Parliament.**

Term & Removal

- **No fixed tenure** – holds office **during the pleasure of the President**.
- **Can resign** by submitting resignation to the President. **No specific removal procedure or grounds** in the Constitution.